

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X
JAYQUAN LANE,

Plaintiff,

-against-

POLICE OFFICER MARK XYLAS, Shield No. 11251,
SERGEANT EREK POWERS, and POLICE OFFICERS
JOHN DOES #1-4,

Defendants.
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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
July 24, 2017

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
Police Officer Mark Xylas, Shield No. 11251, 81st Precinct, 30 Ralph Avenue, Brooklyn,
New York 11221
Sergeant Erik Powers, 81st Precinct, 30 Ralph Avenue, Brooklyn, New York 11221

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
JAYQUAN LANE,

Plaintiff,

INDEX NO.:**VERIFIED COMPLAINT**

-against-

POLICE OFFICER MARK XYLAS, Shield No. 11251,
SERGEANT EREK POWERS, and POLICE OFFICERS
JOHN DOES #1-4,**JURY TRIAL DEMANDED**Defendants.
----- X

Plaintiff JAYQUAN LANE, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. The claims arise from an incident that occurred on July 24, 2014 at approximately 6:00 pm as plaintiff and his friend were lawfully present in plaintiff's motor vehicle located on Lexington Avenue, not far from the intersection with Lewis Street, Brooklyn, New York, when Defendants, acting under the color of state law, subjected plaintiff to an unlawful stop, question, frisk, and search, and falsely arrested and imprisoned plaintiff. Thereafter, plaintiff was maliciously prosecuted and denied the right to due process/ right to a fair trial by the defendant police officers when they maliciously initiated a criminal prosecution against plaintiff, without probable cause, when they communicated false, misleading, and incomplete information to the District Attorney's Office about their factual basis for arresting plaintiff and charging him with crimes., and signed a criminal court complaint containing their false allegations, which was used to initiate the criminal prosecution against plaintiff. The officers falsely arrested, maliciously prosecuted, and subjected plaintiff to malicious abuse of process in retaliation against the friend plaintiff was with at the time of the incident because the officers recognized plaintiff's friend as the individual who previously filed a civil rights lawsuit against the officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested/ imprisoned, maliciously prosecuted, abused process, unlawfully strip searched plaintiff, and denied plaintiff the right to due process/ a fair trial, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Jayquan Lane is a resident of the state of New York.

3. Defendant Police Officer Mark Xylas, Shield No. 11251, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant Police Officer Mark Xylas, Shield No. 11251, is and was at all times relevant herein, assigned to the 81st Precinct.

5. Defendant Police Officer Mark Xylas, Shield No. 11251 is being sued in his individual and official capacity.

6. Defendant Sergeant EreK Powers, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant Sergeant EreK Powers, is and was at all times relevant herein, assigned to the 81st Precinct.

8. Defendant Sergeant EreK Powers is being sued in his individual and official capacity.

9. Defendants New York City Police Officers John Does # 1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

10. Defendants Police Officers John Does # 1-4 are being sued in their individual and official capacities.

11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

12. The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. By way of background, on July 24, 2014, at approximately 6:00 p.m., plaintiff was lawfully seated in the driver's seat of a vehicle located on Lexington Avenue, not far from the intersection with Lewis Street, Brooklyn, New York when the individually named defendant police officers unlawfully stopped plaintiff and his friend who was lawfully seated in the passenger seat of the vehicle, approached the vehicle and proceeded to unlawfully stop, seize and detain plaintiff without his consent, and without reasonable suspicion, probable cause, or any legal justification.

16. At no time prior to stopping plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed a crime, was about to commit a crime, or was in the process of committing a crime.

17. At no time did plaintiff commit a crime, nor did the defendant police officers have an objective factual basis to believe he committed a crime or violated a law or statute on July 24, 2014..

18. At no time was plaintiff in possession of any illegal drugs, weapons, or contraband of any kind on July 24, 2014, nor did the defendant police officers have an objective reason to believe plaintiff possessed illegal drugs, weapons, or contraband of any kind at the time of the stop.

19. Nevertheless, the defendant police officers unlawfully ordered plaintiff to exit the vehicle. Plaintiff complied with the officers' orders.

20. The officers unlawfully searched plaintiff's vehicle without any legal justification and failed to recover any illegal weapons, drugs or contraband from the vehicle.

21. Thereafter the officers brought plaintiff to the rear of the vehicle whereat they unlawfully searched plaintiff's person without legal justification and did not recover any illegal drugs, weapons or contraband from plaintiff's possession, custody or control.

22. When the defendants initially approached plaintiff's vehicle they addressed plaintiff's friend using his full name and acknowledged that they knew plaintiff's friend because he previously filed a civil rights lawsuit against the officers after they previously arrested him.

23. After then officers concluded their unlawful search of the vehicle defendants conferred with each other about how they should proceed and after less than 5 seconds of

consulting each other, one of the defendant officers told the other officer to arrest plaintiff and his friend and advised plaintiff that the charges would be dismissed against him if he would “blame [his] friend.

24. Upon information and belief, the officers falsely arrested/ imprisoned, maliciously prosecuted plaintiff, and subjected plaintiff to the malicious abuse of process, as retaliation against plaintiff’s friend for filing a civil rights lawsuit against them after the officers arrested him on a previous occasion.

25. The defendant police officers unlawfully handcuffed plaintiff and falsely arrested him without legal justification or probable cause to believe plaintiff committed any crime or offense.

26. The defendant officers unlawfully transported plaintiff to the 81st Precinct whereat he was unlawfully strip searched, fingerprinted, and photographed before he was transported to Kings County Central Booking whereat his detention continued for many hours.

27. The defendant police officers provided the Kings County District Attorney’s Office with a false narrative about why the officers stopped, searched, and arrested plaintiff.

28. Specifically, the defendant police officers falsely advised the District Attorney’s Office that they recovered an alleged “gravity knife” from “plain view” in plaintiff’s vehicle from an area allegedly within plaintiff’s possession, custody or control.

29. Importantly, the collateral objective the defendants had for ensuring plaintiff was arrested and prosecuted was to retaliate against plaintiff’s friend for filing a Civil Rights lawsuit against them

30. Based upon the false, misleading, and incomplete information provided to the District Attorney’s Office by the defendant police officers and sworn to by the defendants in the criminal court complaint, defendants initiated a prosecution against plaintiff on July 25, 2014, and legal process against plaintiff was commenced when plaintiff was arraigned in Kings County Criminal Court and was falsely charged with the crime of Criminal Possession of a Weapon in the Fourth Degree (PL 265.01(1)).

31. On July 25, 2014, after approximately 24 hours in police custody, plaintiff was arraigned in Kings County Criminal Court, falsely charged with the crime of Criminal Possession of a Weapon in the Fourth Degree (PL 265.01(1)) without probable cause, and he was released from court on his own recognizance.

32. Thereafter, plaintiff was forced to appear in Court on approximately 20 occasions before all charges against plaintiff were terminated in his favor and dismissed on May 10, 2016 after the Court held that the officers lacked “probable cause to stop and search the vehicle and arrest plaintiff and the judge stated on the record that he reached his decision because

the officers lacked credibility and he could not credit their testimony provided during the Ingle, Dunaway, Mapp Hearing that was held on March 8, 2016.

33. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, strip search, false arrest, false imprisonment, malicious prosecution, abuse of process, and denial of the right to due process/fair trial against plaintiff.

34. The unlawful stop, question, frisk, search, strip search, false arrest, false imprisonment, malicious prosecution, abuse of process, and denial of the right to due process/fair trial, against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

35. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.

36. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, unlawfully strip searched, falsely arrested, falsely imprisoned, maliciously prosecuted, subjected to abuse of process and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

38. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

39. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

40. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

41. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

44. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

45. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search and Strip Search

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

50. Defendants lacked probable cause to search and/or strip search plaintiff..

51. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the Constitution of the United States.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

56. Defendants commenced and continued a criminal proceeding against plaintiff.

57. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

58. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

59. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

63. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

64. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

65. In withholding/creating false evidence against plaintiff Jayquan Lane, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments to the Constitution of the United States.

66. As a result of the foregoing, plaintiff Jayquan Lane, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process

68. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 67 with the same force and effect as if more fully set forth at length herein.

69. Defendants issued legal process to place plaintiff Jayquan Lane under arrest.

70. Defendants arrested plaintiff Jayquan Lane in order to obtain a collateral objective outside the legitimate ends of the legal process.

71. Defendants acted with intent to do harm to plaintiff Jayquan Lane, without excuse or justification.

72. As a result of the foregoing, plaintiff Jayquan Lane sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

73. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Failure to Intervene

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

76. Defendants failed to intervene to prevent the unlawful conduct described herein.

77. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

79. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Jayquan Lane demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
July 24, 2017

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
July 24, 2017

/s/

STUART E. JACOBS